

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER 		PAGE 1 OF 32			
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE TBD	4. ORDER NUMBER	5. SOLICITATION NUMBER 1131PL26RCP0022		
6. SOLICITATION ISSUE DATE 5/05/2026		7. FOR SOLICITATION INFORMATION CALL:			
a. NAME Afua Serwah-Asibey		b. TELEPHONE NUMBER (No collect calls) (703) 875-4357			
8. OFFER DUE DATE/ LOCAL TIME 6/02/2026 1:00 PM EST					
9. ISSUED BY U.S. Trade and Development Agency (USTDA) 1101 Wilson Boulevard, Suite 1100 Arlington, Virginia 22209		CODE 1131PL 10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☐ SET ASIDE: _____ % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED 541690 ☐ SERVICE-DISABLED ☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB) \$19.0M ☐ VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A)			
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS NET30	13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐	13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ REQUEST ☐ INVITATION ☒ FOR PROPOSAL ☐ FOR QUOTE (RFQ) ☐ FOR BID (IFB) (RFP)		
15. DELIVER TO U.S. Trade and Development Agency (USTDA) 1101 Wilson Boulevard, Suite 1100 Arlington, Virginia 22209		CODE 1131PL 16. ADMINISTERED BY U.S. Trade and Development Agency (USTDA) 1101 Wilson Boulevard, Suite 1100 Arlington, Virginia 22209			
17a. CONTRACTOR/ OFFEROR CODE _____ FACILITY CODE _____	18a. PAYMENT WILL BE MADE BY CODE 1131PL Invoices shall be submitted to USTDA for payment via the U.S. Department of Treasury's Invoice Processing Platform (IPP). The contractor must prepare and submit invoices electronically to: https://www.ipp.gov				
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Philippines Railroad Development Advisory Services Please see continuation pages. <i>(Use Reverse and/or Attach Additional Sheets as Necessary)</i>				
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (For Government Use Only)	
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED					
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED			☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED . _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)		
30b. NAME AND TITLE OF SIGNER (Type or print)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print)	31c. DATE SIGNED		

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0001	Base Year Direct Labor (Fully Burdened Daily Labor Rate)	1	LOT		
0002	Cost Reimbursement (Not-To-Exceed)	1	LOT		
1001	Option Year 1 Direct Labor (Fully Burdened Daily Labor Rate)	1	LOT		
1002	Cost Reimbursement (Not-To-Exceed)	1	LOT		

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED

☐ INSPECTED

☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL

☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

40. PAID BY

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

42a. RECEIVED BY (Print)

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42b. RECEIVED AT (Location)

42c. DATE RECEIVED (MM/DD/YYYY)

42d. TOTAL CONTAINERS

SECTION B – SCHEDULE OF SUPPLIES/SERVICES

(Continuation from Standard Form 1149, blocks 19 through 24)

Schedule of Supplies/Services					
Base Period - One Year from Date of Award					
CLIN	CLIN Description	Unit	Qty	Unit Price	Total Price
0001	Direct Labor (Fully Burdened Daily Labor Rate	LOT	1		
0002	Cost Reimbursement (Not-To-Exceed)/Travel, Cost Only	LOT	1		
Total Base Period Price					\$0.00
Option Period 1 - One Year from Date of Exercise					
CLIN	CLIN Description	Unit	Qty	Unit Price	Total Price
1001	Direct Labor (Fully Burdened Daily Labor Rate	LOT	1		
1002	Cost Reimbursement (Not-To-Exceed)/Travel, Cost Only	LOT	1		TBD at time of Exercise
Total Option Period 1 Price					\$0.00
Total Contract Price					\$0.00

B.1 Labor Rates and Categories

The following fully burdened labor rates may be used in the performance of this contract.

The Technical Expert labor category is a blended rate for all team members supporting the required disciplines identified in SOW Section D.2, “Scope of Work.”

Labor Category	Base Year	Option Year 1
Rail Transportation Expert		
Transportation Support Team		

B.2 Period of Performance

The period of performance for this contract will be one (1) 12-month base period with one (1) 12-month option period.

B.3 Place of Performance

The places of performance shall be at the Contractor's facility in the U.S. or as directed in the Philippines.

B.4 Other Direct Costs

The Contractor will be reimbursed for allowable and allocable other direct costs (ODC), including travel expenses that have been pre-approved by the Contracting Officer's Representative in writing. The Contractor is responsible for arranging its own logistics for the visit, e.g., hotel accommodations, visas, and transportation. The Contractor shall comply with the requirements of FAR 31.205-46(b) for air travel. The Contractor shall also receive per diem based on U.S. Government rates, which are available on the State Department website: http://aoprals.state.gov/web920/per_diem.asp. The Contractor's travel shall be determined in coordination with the COR prior to booking. The Contractor shall notify the Government immediately in writing once it has reached 75% of the not-to-exceed ODC funding.

B.4.1 Insurance Coverage

Defense Base Act (DBA) Insurance: Pursuant to the contract clause FAR 52.228-3, "Worker's Compensation Insurance (Defense Base Act)," the Contractor is required to have DBA insurance coverage while performing work overseas.

Medical Evacuation Insurance: USTDA requires all Contractor personnel working outside the United States to have medical evacuation insurance.

The cost for such insurance will be covered under the cost reimbursable ODC line item of the contract.

B.5 Contract Administration Data

- 1. Contract Administration:** All contract administration matters will be handled by the following individuals:

a. CONTRACTOR: TBD

b. GOVERNMENT: Contracting Officer (CO)
U.S. Trade and Development Agency
1101 Wilson Blvd., Suite 1100
Arlington, VA 22209

Contracting Officer's Representative (COR)
U.S. Trade and Development Agency
1101 Wilson Blvd., Suite 1100
Arlington, VA 22209

2. Contractor Remittance Address: All payments by the Government to the Contractor will be made as follows:

- a.** The Contractor shall submit invoices electronically in accordance with the payment schedule stipulated in each task order using the Invoice Processing Platform (“IPP”).
- a.** In accordance with FAR 52.212-4(g) Invoice, the following information must be provided:
 - i. Name and address of Contractor
 - ii. Invoice date and invoice number
 - iii. Contract number and contract line item number
 - iv. Description, quantity of measure, unit of measure, unit price and extended price of services performed;
 - v. Terms of any discount for prompt payment offered; and
 - vi. Name, title, telephone number, and mailing address of person to be notified in the event of a defective invoice.

In addition to the above information, the Contractor shall itemize its invoices to include the following information:

- i. The number of labor hours invoiced per person for the current invoice billing period, the person’s labor rate, and the total invoiced amount per person;
 - ii. The total amount due in the current invoice period;
 - iii. The total contract amount awarded;
 - iv. The amount already expended/invoiced; and
 - v. The amount of remaining amount of funds against the contract.
 - vi. Any invoiced other direct costs (ODC), including travel costs, shall be accompanied by receipts regardless of the dollar amount. If a receipt is not available, a written and signed notice itemizing the expenses, certifying that the expenses were paid for, and required for the performance of this contract, shall accompany the invoice.
- b.** The Contractor is responsible for providing the Contracting Officer with Electronic Funds Transfer (EFT) banking information at the time of award. Failure to provide EFT information at time of award may delay payment.
- c.** Invoices shall be submitted no more than once per month.

SECTION C – CONTRACT CLAUSES

Clauses Incorporated By Reference

52.202-1	Definitions	JUN 2020
52.203-3	Gratuities	APR 1984
52.203-12	Limitation on Payments to Influence Certain Federal Transactions	JUN 2020
52.212-4	Contract Terms of Conditions – Commercial Items	NOV 2023
52.227-16	Additional Data Requirements	JUN 1987
52.227-17	Rights in Data – Special Works	DEC 2007
52.228-3	Workers’ Compensation Insurance (Defense Base Act)	JUL 2014
52.232-20	Limitation of Cost	APR 1984
52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
52.233-4	Applicable Law for Breach of Contract Claim	OCT 2004

Clauses Incorporated by Full-Text

52.212-5	Contract Terms and Conditions Required to Implement Statutes or Executive Orders -- Commercial Items.	MAR 2026
52.217-8	Option to Extend Services	NOV 1999
52.217-9	Option to Extend the Term of the Contract	MAR 2000
52.252-2	Clauses Incorporated by Reference	FEB 1998

52.212-5 -- Contract Terms and Conditions Required to Implement Statutes or Executive Orders -- Commercial Items (MAR 2026)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) [52.209-10](#), Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)).

(6) [52.233-3](#), Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) [52.233-4](#), Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 ([19 U.S.C. 3805](#) note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

 X (1) [52.203-6](#), Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and [10 U.S.C. 4655](#)).

 X (2) [52.203-13](#), Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509)).

 (3) [52.203-15](#), Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

 (4) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900](#)(a).

 X (5) [52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) ([31 U.S.C. 6101](#) note).

 (6) [Reserved].

 X (7) [52.204-14](#), Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

 (8) [52.204-15](#), Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

 (9) [52.204-27](#), Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

 (10) [52.204-28](#), Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) ([Pub. L. 115–390](#), title II).

__ (11)

(i) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) ([Pub. L. 115–390](#), title II).

__ (ii) Alternate I (DEC 2023) of [52.204-30](#).

X (12) [52.209-6](#), Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) ([31 U.S.C. 6101 note](#)).

X (13) [52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) ([41 U.S.C. 2313](#)).

__ (14) [Reserved].

__ (15) [52.219-3](#), Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) ([15 U.S.C. 657a](#)).

__ (16) [52.219-4](#), Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

__ (17) [Reserved]

__ (18)

(i) [52.219-6](#), Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

__ (ii) Alternate I (MAR 2020) of [52.219-6](#).

__ (19)

(i) [52.219-7](#), Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

__ (ii) Alternate I (MAR 2020) of [52.219-7](#).

__ (20) [52.219-8](#), Utilization of Small Business Concerns (JAN 2025)([15 U.S.C. 637\(d\)\(2\)](#) and (3)).

__ (21)

(i) [52.219-9](#), Small Business Subcontracting Plan (JAN 2025) ([15 U.S.C. 637\(d\)\(4\)](#)).

__ (ii) Alternate I (NOV 2016) of [52.219-9](#).

- ___ (iii) Alternate II (NOV 2016) of [52.219-9](#).
- ___ (iv) Alternate III (JUN 2020) of [52.219-9](#).
- ___ (v) Alternate IV (JAN 2025) of [52.219-9](#).
- ___ (22)
- ___ (i) [52.219-13](#), Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).
- ___ (ii) Alternate I (MAR 2020) of [52.219-13](#).
- ___ (23) [52.219-14](#), Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).
- ___ (24) [52.219-16](#), Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- ___ (25) [52.219-27](#), Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).
- ___ (26)
- ___ (i) [52.219-28](#), Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).
- ___ (ii) Alternate I (MAR 2020) of [52.219-28](#).
- ___ (27) [52.219-29](#), Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).
- ___ (28) [52.219-30](#), Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).
- ___ (29) [52.219-32](#), Orders Issued Directly Under Small Business Reserves (MAR 2020) ([15 U.S.C. 644\(r\)](#)).
- ___ (30) [52.219-33](#), Nonmanufacturer Rule (SEP 2021) ([15 U.S.C. 637\(a\)\(17\)](#)).
- _X_ (31) [52.222-3](#), Convict Labor (JUN 2003) (E.O. 11755).
- _X_ (32) [52.222-19](#), Child Labor—Cooperation with Authorities and Remedies (MAR 2026)([E.O. 13126](#)).
- ___ (33) [52.222-21](#), Prohibition of Segregated Facilities (APR 2015).

- ___ (34)
- (i) [52.222-26](#), Equal Opportunity (SEP 2016) (E.O. 11246).
- ___ (ii) Alternate I (FEB 1999) of [52.222-26](#).
- _X_ (35) (i) [52.222-35](#), Equal Opportunity for Veterans (JUN 2020) ([38 U.S.C. 4212](#)).
- ___ (ii) Alternate I (JUL 2014) of [52.222-35](#).
- _X_ (36) (i) [52.222-36](#), Equal Opportunity for Workers with Disabilities (JUN 2020) ([29 U.S.C. 793](#)).
- ___ (ii) Alternate I (JUL 2014) of [52.222-36](#).
- _X_ (37) [52.222-37](#), Employment Reports on Veterans (JUN 2020) ([38 U.S.C. 4212](#)).
- _X_ (38) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).
- _X_ (39) (i) [52.222-50](#), Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).
- ___ (ii) Alternate I (MAR 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).
- _X_ (40) [52.222-54](#), Employment Eligibility Verification (JAN 2025) ([Executive Order 12989](#)). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR [22.1803](#).)
- ___ (41) (i) [52.223-9](#), Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ___ (ii) Alternate I (MAY 2008) of [52.223-9](#) (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ___ (42) [52.223-11](#), Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ___ (43) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ___ (44) [52.223-20](#), Aerosols (MAY 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ___ (45) [52.223-21](#), Foams (MAY 2024) ([42 U.S.C. 7671](#), *et seq.*).

___ (46) [52.223-23](#), Sustainable Products and Services (MAY 2024) ([E.O. 14057](#), [7 U.S.C. 8102](#), [42 U.S.C. 6962](#), [42 U.S.C. 8259b](#), and [42 U.S.C. 7671l](#)).

___ (47) (i) [52.224-3](#) Privacy Training (JAN 2017) ([5 U.S.C. 552](#) a).

___ (ii) Alternate I (JAN 2017) of [52.224-3](#).

X (48) (i) [52.225-1](#), Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 83).

___ (ii) Alternate I (OCT 2022) of [52.225-1](#).

___ (49) (i) [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) ([19 U.S.C. 3301](#) note, [19 U.S.C. 2112](#) note, [19 U.S.C. 3805](#) note, [19 U.S.C. 4001](#) note, [19 U.S.C. chapter 29](#) (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

___ (ii) Alternate I [Reserved].

___ (iii) Alternate II (JAN 2025) of [52.225-3](#).

___ (iv) Alternate III (FEB 2024) of [52.225-3](#).

___ (v) Alternate IV (Oct 2022) of [52.225-3](#).

___ (50) [52.225-5](#), Trade Agreements (NOV 2023) ([19 U.S.C. 2501](#), *et seq.*, [19 U.S.C. 3301](#) note).

X (51) [52.225-13](#), Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

___ (52) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

___ (53) [52.226-4](#), Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

___ (54) [52.226-5](#), Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

___ (55) [52.226-8](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) ([E.O. 13513](#)).

___ (56) [52.229-12](#), Tax on Certain Foreign Procurements (FEB 2021).

___ (57) [52.232-29](#), Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10 U.S.C. 3805](#)).

___ (58) [52.232-30](#), Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10 U.S.C. 3805](#)).

X (59) [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (OCT2018) ([31 U.S.C. 3332](#)).

___ (60) [52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

___ (61) [52.232-36](#), Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

___ (62) [52.239-1](#), Privacy or Security Safeguards (AUG 1996) ([5 U.S.C. 552a](#)).

___ (63) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

___ (64) [52.242-5](#), Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).

___ (65)

(i) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631).

___ (ii) Alternate I (APR 2003) of [52.247-64](#).

___ (iii) Alternate II (Nov 2021) of [52.247-64](#).

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

___ (1) [52.222-41](#), Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

___ (2) [52.222-42](#), Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

___ (3) [52.222-43](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

___ (4) [52.222-44](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) ([29U.S.C.206](#) and 41 U.S.C. chapter 67).

___ (5) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

X (6) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

___ (7) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

___ (8) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

___ (9) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

___ (10) [52.247-69](#), Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) ([49 U.S.C. 40118\(g\)](#)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR [2.101](#), on the date of award of this contract, and does not contain the clause at [52.215-2](#), Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart [4.7](#), Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the

Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) [52.203-17](#), Contractor Employee Whistleblower Rights (NOV 2023) ([41 U.S.C. 4712](#)).

(iii) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) [52.204-27](#), Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii) (A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) ([Pub. L. 115-390](#), title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(viii) [52.219-8](#), Utilization of Small Business Concerns (JAN 2025) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702\(a\)](#) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.

(ix) [52.222-21](#), Prohibition of Segregated Facilities (APR 2015).

(x) [52.222-26](#), Equal Opportunity (SEP 2016) (E.O. 11246).

(xi) [52.222-35](#), Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) [52.222-36](#), Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) [52.222-37](#), Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).

(xv) [52.222-41](#), Service Contract Labor Standards (AUG 2018) ([41 U.S.C. chapter 67](#)).

(xvi) (A) [52.222-50](#), Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) [52.222-54](#), Employment Eligibility Verification (JAN 2025) ([E.O. 12989](#)).

(xx) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii) (A) [52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).

(B) Alternate I (JAN 2017) of [52.224-3](#).

(xxiii) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause [52.226-6](#).

(xxv) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of [52.232-40](#).

(xxvi) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

(xxvii) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause [52.247-64](#).

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.217-8 - Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within five (5) calendar days.

52.217-9 Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

52.222-90 Addressing DEI Discrimination by Federal Contractors

(a) Definitions. As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

(1) The Contractor will not engage in any racially discriminatory DEI activities.

(2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause.

(3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts.

(4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer.

(5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.

(6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, for which the place of delivery or performance is in the United States.

(End of clause)

52.252-2 - Clauses Incorporated by Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address: www.acquisition.gov.

SECTION D – ANY CONTRACT DOCUMENTS, EXHIBITS OR ATTACHMENTS

D.1. PERFORMANCE WORK STATEMENT

D.1.1. OVERVIEW

The U.S. Trade and Development Agency (“USTDA”) supports the development of overseas infrastructure projects that advance the shared strategic interests of the United States and its overseas partners. These projects offer opportunities for the export of trusted U.S. solutions, including technology, goods, and services that support U.S. jobs.

USTDA is the U.S. government’s first mover on critical infrastructure projects overseas. The Agency funds the upfront technical and design work that accelerates infrastructure development and helps projects attract financing. This includes project preparation activities such as feasibility studies, technical assistance, pilot projects, and front-end engineering and design studies.

In June 2025, USTDA awarded a contract to a U.S. company to carry out the technical assistance (“TA”) in support of the Philippines’ Subic-Clark-Manila-Batangas (“SCMB”) Railway project. The services being provided under the existing SCMB Railway TA contract include, but is not limited to, transport model surveys, assessing the port-rail integration options, conducting the environmental impact and climate assessments, and recommending the optimal legal and institutional framework. USTDA’s assistance is a component of a broader, international project preparation effort to support the Philippines Department of Transportation’s SCMB Railway project, which includes elements and other contracts funded by the Asian Development Bank (“ADB”) and Swedfund.

D.1.2. SCOPE OF WORK

USTDA requires services under this non-personal services contract to assess the completeness of deliverables submitted by the U.S. company to USTDA for review and acceptance under the USTDA-funded SCMB Railway contract. The Contractor will serve as an independent and objective technical expert to (a) conduct a thorough review of the work product and deliverables submitted to USTDA for review and acceptance, and (b) provide advisory services to USTDA and coordination with ADB and Swedfund across multiple technical workstreams.

To successfully review the SCMB Railway TA contract work products and deliverables submitted to USTDA, the Contractor shall have extensive experience and knowledge of the rail transportation sector, as well as ADB financing and lending requirements, including but not limited to ADB’s environmental and social safeguards, and PPP financing approaches. The deliverables requiring review and recommendation of technical acceptability include the following:

- Initial Information Gathering
- Transport Model Surveys for Freight and Passenger Sector
- Subic-Clark-Manila-Batangas Transport Model
- Port-Rail Integration Study

- Preliminary Environmental Impact Assessment Scoping and Regulatory Reports
- Climate Risk Assessment
- Environmental and Social Management Plan
- Environmental Impact Assessment
- Project Regulatory and Legal Analysis
- Development Impact Assessment
- U.S. Sources of Supply Analysis
- Final Report and Stakeholder Presentation

Specifically, the Contractor shall:

- 1) Review deliverables to ensure that all project work products meets or exceeds the technical requirements of the SCMB Railway TA contract Scope of Work.
 - a. The Contractor may also be required to travel to the Philippines for up to three times, for a duration not to exceed five (5) working days per visit, to participate in meetings along with USTDA personnel and/or conduct site visits to support USTDA with the assessment of deliverables.
 - b. The Contractor may be required to join meetings and discussions with multiple stakeholders, including but not limited to monthly donor coordination meetings.
 - c. Once the review of each deliverable is complete, the Contractor shall provide a brief report to USTDA stating its determination of whether the deliverable was submitted meets the technical requirements of the Statement of Work or if there are any deficiencies that USTDA must address with the SCMB Railway TA Contractor.
- 2) Provide advisory services to USTDA on the overall status and compliance of the technical assistance, including the alignment and coherence of the broader feasibility study work under preparation by USTDA, ADB, and Swedfund, providing timely, written observations on any issues, risks, or coordination needs that may affect the quality, schedule, or consistency of the overall effort. As part of its advisory services responsibility, the Contractor shall:
 - a. Provide expert advice to USTDA during discussions and reviews of the overall project preparation work for the SCMB Railway project.
 - b. Offer USTDA personnel market and industry insights on technical requirements or concerns related to the project preparation work.
 - c. Explain and interpret technical information for non-technical USTDA personnel.
 - d. Maintain current knowledge of U.S. government policies and guidelines, as well as project financier requirements.
 - e. Provide expertise for follow-on activities that may be needed for project implementation. These activities include technical consultation and advisory services, such as general guidance on value-based procurement, tender documentation, or required permits and approvals. Any such activities would be conducted in coordination with USTDA and carried out only when deemed appropriate by USTDA on a case-by-case basis.

The Contractor shall obtain approval from the Contracting Officer Representative (“COR”) prior to any necessary travel to the Philippines.

For clarity, the Contractor is not required to evaluate the completeness or compliance of technical deliverables produced by contractors not funded by USTDA or by other funding partners. However, the Contractor may need to review or reference such materials as necessary to perform the tasks outlined in this Scope of Work.

All deliverables provided under this contract are proprietary information; therefore the Contractor shall maintain the confidentiality of any confidential information received as part of performing these services.

D.1.3. NON-PUBLIC INFORMATION

In performance of this contract, Contractor personnel may obtain access to sensitivity or confidential non-public information. The Contractor shall: (a) use and protect such information from unauthorized disclosure in accordance with the FAR; (b) use such information only for the purpose of performing this contract and shall not use or disclose such information for any personal or commercial purpose; (c) return, upon Government request, any non-public, sensitive or confidential information no longer required for contractor performance; and (d) advise the CO/COR of any unauthorized release of such information.

D.1.4. NON-DISCLOSURE AGREEMENT AND KICKOFF

Upon award, the Contractor shall be required to sign a Non-Disclosure Agreement. To the extent that the work under this contract requires that the contractor be given access to confidential information or proprietary data from the Government or other companies, the Contractor agrees to treat such information and data as confidential and to use the information only for the contemplated purpose. After signing the Non-Disclosure Agreement, the Contractor shall contact USTDA’s COR to schedule a meeting or call to discuss details of the Contract assignment.

D.1.5. METHODOLOGY AND DELIVERABLES

The Contractor shall review each of the milestone deliverable packages provided by USTDA and provide feedback as required. The deliverables under this contract may take the form of information, advice, analyses, recommendations, reports, or other oral or written work products needed for successful performance. The Contractor shall respond in a timely manner to reasonable requests for updates and information from the COR.

In the course of carrying out this contract, the Contractor shall take the following steps:

- a. The Contractor shall be provided with a copy of the final Contract executed between USTDA and the SCMB Railway TA Contractor, that includes detailed information and deliverables for each of the milestones in the Contract. After reviewing the Contract, the Contractor must contact the COR via email to set up a meeting to discuss initial

observations and raise any questions or concerns. At this time, USTDA will provide the Contractor with additional guidance on the Agency's expectations for this contract.

- b. Upon receipt from USTDA, the Contractor must review each of the deliverables in their entirety to assure completeness and technical appropriateness in accordance with the deliverable stated in the SCMB Railway contract awarded by USTDA.
- c. Based on each review, if any additional information or clarifications are required, the Contractor shall immediately contact the COR.
- d. Provide USTDA a brief report (3 to 5 pages) on whether the work product deliverables provided by USTDA for review meets the technical requirement of the Scope of Work of the SCMB Railway TA contract. Response for each deliverable review request is required within nine (9) business days of receipt of each package from USTDA. Any re-submitted deliverables shall be reviewed and the Contractor shall submit a follow-up report to USTDA.
- e. After incorporating USTDA's comments and receiving approval on each of the deliverables' report ("Task Report"), the Contractor shall provide a final electronic version of each report to the COR for acceptance prior to invoicing.

The Contractor shall only be directed to invoice for work completed and accepted by the Government.

Unless otherwise agreed to by USTDA, the Contractor shall submit the **Final Report** under this Contract to the COR within 45 days prior to the end of the contract period of performance. The Final Report shall include all Task Reports and any findings and recommendations related to the advisory services provided. If the report cannot be provided within this timeframe, the Contractor shall immediately contact the COR to discuss the reasons for the delay.

The Final Report must be paginated, clearly labeled, and submitted electronically in Adobe PDF format to USTDA via the following email: finalreports@ustda.gov

D.1.6. PERSONNEL

D.1.6.1. The Contractor shall provide all personnel, supervision and other items and services, as required, to perform as defined in this PWS.

D.1.6.2. Contractor personnel shall meet with the CO, COR, and other Government personnel as required by the CO. The Contractor shall ensure all personnel meet qualifications associated with assigned functions and provide verifying documentation to the CO upon request.

D.1.6.3. If qualified personnel that were proposed as part of the Contractor's team for whatever reason become unavailable for work under this contract for a continuous period exceeding 30 work days or is expected to devote substantially less effort toward the work than indicated in the proposal, or are changing role/functional positions under the contract, the Contractor shall propose a qualified replacement of such personnel in accordance with the below requirements.

All proposed substitutions shall be submitted, in writing, to the CO at least 15 days prior to the proposed substitution. Each request shall provide detailed explanation of the circumstances

necessitating the proposed replacement, a complete resume for the proposed replacement personnel and any other information required by the CO to approve or disapprove the proposed replacement. The proposed replacement personnel (no matter when they are proposed during the performance period) shall have qualifications that are equal to or higher than the qualifications of the person being replaced.

D.1.7. Non-Personal Services

This contract is a non-personal services contract. **No personal services will be performed under this contract.** The Contractor shall not perform any inherently governmental actions under this contract. The services rendered by the contractor are rendered in the capacity of an independent contractor. The Government retains no direct control over the services provided by the Contractor. No Contractor personnel shall hold himself/herself out to be a Government employee, agent or representative. All Contractor personnel attending meetings and working in other situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials, unless, in the judgment of the Contracting Officer, no harm can come from failing to identify themselves.

D.1.8. QUALITY CONTROL

The deliverables shall be grammatically and factually correct in all respects, internally consistent, and all statements and tables shall be clear and easily understood by a competent reader and contain no typographical errors. The Contractor is responsible for quality control actions necessary to achieve quality in the delivery of the required services, which may include the services of a professional editor. The COR will reject deliverables that do not conform in all respects to the contract requirements, including but not limited to, the written quality of the Final Report. The Contractor shall correct all deficiencies at no additional cost to the Government.

D.1.9. CONFIDENTIALITY:

Any and all documents submitted to the Contractor are proprietary documents and should not be distributed without permission from USTDA.

D.1.10. INTELLECTUAL PROPERTY:

This contract is funded by the United States Government. All intellectual property generated and/or delivered pursuant to this Statement of Work shall be subject to appropriate federal acquisition regulations which entitle the Government to unlimited rights to technical data developed exclusively with Government funds. The Government may: (1) use; (2) disclose; (3) reproduce; (4) prepare derivative works; (5) distribute copies to the public; (6) perform publicly; and (7) display publicly, the “data” in any manner and for any purpose, and have or permit others to do so (i.e., the Government may sublicense these rights to another contractor). See FAR 52.227-14(a).

D.1.11. COORDINATION WITH OTHER CONTRACTORS:

The U.S. and the Philippines government may award other contracts for additional work not prescribed in this contract. The Contractor shall coordinate, as necessary, with other stakeholders and such contractors—including those already engaged by ADB and Swedfund—when directed by the COR. Notwithstanding any external coordination, the Contractor's obligations under this contract are exclusively with USTDA. The Contractor shall not commit or permit any act that interferes with the performance of work by any other contractor.

D.1.12. INSURANCE COVERAGE

D.1.12.1. Defense Base Act (DBA) Insurance

Pursuant to the contract clause entitled "Worker's Compensation Insurance (Defense Base Act)" (FAR 52.228-3), the Contractor is required to have DBA coverage for its employees when performing work overseas. The Contractor agrees to procure this insurance pursuant to the terms of the contract from an approved insurance carrier, unless the Contractor has a DBA self-insurance program approved by the Department of Labor or has an approved retrospective rating agreement for DBA.

D.1.12.2. Medical Evacuation Insurance

USTDA requires all contractor personnel working outside the United States to have Medical evacuation insurance.

D.1.13. PERIOD OF PERFORMANCE:

The base period of performance will be twelve (12) months from the date of award with one (1) additional option period of twelve (12) months, for a total contract period of twenty-four (24) months if all options are exercised.

D.1.14. PLACE OF PERFORMANCE:

The places of performance shall be at the Contractor's facility in the U.S. or as directed in the Philippines.

D.1.15 INELIGIBILITY FOR PERFORMANCE ON OTHER USTDA ACTIVITIES

Work performed under this contract shall be conducted with complete impartiality and objectivity and that the Contractor and its Subcontractors do not obtain an unfair competitive advantage on USTDA-funded activities. The Contractor shall therefore be ineligible to compete for, as a prime or subcontractor or otherwise, any future USTDA funded activities resulting from this contract. The tasks under this contract require access to proprietary, business confidential, and internal agency documents, to include, but not limited to, financial data, which informs USTDA's grant and acquisition activities, and may give rise to a potential organizational conflict of interest in accordance with FAR Subpart 9.5. USTDA, through its Office of Acquisition Management reserves the right to grant a waiver, based upon FAR 9.503, if preclusion of the

Contractors from USTDA activities resulting from this contract would not be in the Government's interest. This restriction will remain in effect for four (4) years from the completion of performance under this contract. The Contractor is responsible for including this restriction in all subcontracts under the contract.

D.2. ATTACHMENTS

ATTCH/ EXHIBIT	TITLE
-------------------	-------

I	Task Report Outline
---	---------------------

Attachment I

Task Report Outline

A. Executive Summary

An executive summary of the report's findings and recommendations.

B. Scope of Work

A brief description of the Tasks and the Scope of Work covered by the respective milestone in the Contract between USTDA and the selected Contractor.

C. Review of Report

An assessment of whether the milestone deliverable report fulfills the Tasks of the Scope of Work covered by the respective milestone. The assessment should consider all relevant aspects of the Scope of Work and should give the professional opinion of the Contractor as to whether the work presented in the deliverable is sufficient and acceptable for payment. The assessment should consider all relevant subparts or sub-tasks included in the Scope of Work, determine whether documentation and analysis included in the milestone is sufficient to come to the conclusions made in the milestone, and consider standard industry and professional practice on studies of this type.

D. Conclusions and Recommendations

A conclusion as to whether the milestone fulfills the relevant Tasks in the Scope of Work. If it is concluded that the report does not fulfill the relevant Tasks in the Scope of Work, clearly state which areas are deficient in part or in whole and reference the budget for the technical assistance as a guide to determining the cost of the work not done. Submit a recommendation to USTDA to approve or disapprove the invoice.

E. Contacts

A list of individuals contacted during the course of this contract with their addresses, phone numbers, email addresses, and relevant comments.

SECTION E – SOLICITATION PROVISIONS AND INSTRUCTIONS

This is a combined synopsis/solicitation for commercial item prepared in accordance with the format in Federal Acquisition Regulation (FAR) Subpart 12.6 and procedures in Subpart 13.1 as supplemented with additional information included in this notice. This announcement constitutes the only Request for Proposal (RFP); proposals are being requested and written solicitation will not be issued.

E.1 Addendum for FAR 52.212-1, “Instruction to Offerors – Commercial Item”

Provisions that are incorporated by reference have the same force and effect as if they were given in full text. The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

E.1.1 General Information

USTDA is issuing this combined Synopsis/Solicitation to solicit offerors for the purpose of entering into a single award Firm-Fixed-Price contract with optional cost-reimbursable contract line item numbers (CLINs). This acquisition is being conducted in accordance with the procedures in Federal Acquisition Regulations (FAR) Part 12 (Acquisition of Commercial Items) and FAR Part 13 (Simplified Acquisition Procedures).

Award is limited to U.S. Firms or U.S. individuals. Contractor and U.S. subcontractor employees used shall be either U.S. citizens or non-U.S. citizens lawfully admitted for permanent residence in the United States. Contractor use of subcontractors is limited to less than fifty percent of the proposed price.

System for Award Management (SAM) Requirement:

All Offerors must be registered and have an active status in the System for Award Management (www.sam.gov) in order to be eligible for contract award. Offerors are reminded that failure to properly enroll in SAM and provide accurate Unique Entity ID (UEID)/Tax Identification Number (TIN) information will make an offeror ineligible for award as described in FAR 52.204-7. Offerors may obtain information on SAM registration via: <https://www.sam.gov/>.

Notice Regarding Suspension/Debarment/Ineligibility:

Any contract awarded to a Contractor who at the time of award was suspended, debarred, and ineligible for receipt of contract with Government Agencies or is in receipt of a notice of proposed debarment from any Government Agency, is voidable at the option of the Government.

E.1.2 Proposal Submission and Due Date

The Offeror’s proposal shall be submitted electronically via Contractproposals@ustda.gov no later than **Tuesday, June 02, 2026, 1:00 PM, Washington DC Time/ET**, adhering to the files set forth below.

The proposal must be accompanied by a transmittal letter signed by an authorized representative of the Offeror.

The Offeror's proposal shall consist of two (2) volumes/sections. The Volumes/Sections are I – Technical and Past Performance and II – Price and General Information, Certificates and/or Provisions.

The Offeror assumes full responsibility for ensuring that offers are received electronically by the Contract Specialist at Contractproposals@ustda.gov – no later than the above due time and date. Late proposals will be processed in accordance with FAR guidance.

All submissions should contain the subject line “RFP 1131PL26R0022, Technical Advisory Service: Philippines Railroad Development.” Please submit documents compatible with Microsoft Office or PDF files. Proposal materials with unacceptable or unreadable formats may be found non-responsive.

E.1.3 Communications Regarding this RFP

Any questions regarding this RFP should be directed to the Contract Specialist via e-mail at Contractproposals@ustda.gov and aasibey@ustda.gov. The deadline for submission of questions regarding this RFP is **Tuesday, May 12, 2026 1:00 PM Washington DC Time/ET**.

Questions should be in the following format:

Reference: Section ____, Page ____, Paragraph ____
Question: _____.

Questions received after the above date and time may not be answered. Questions and the Government's responses to those questions will be posted as an amendment to the solicitation on (www.sam.gov). Questions received in any other format may not be answered.

E.1.4 Amendments to the Solicitation

Offerors shall acknowledge receipt of any amendment to this solicitation by signing and including the signed amendment in their proposal as directed below.

E.1.6 Proposal Content

This RFP is issued as per FAR Subpart 12 and 13. A trade-off process, as described at FAR 15.101, will be used in making the source selection. Contractors are advised that award will not necessarily be made to the Contractor submitting the proposal with the lowest evaluated price.

Technical proposal shall not exceed 15 pages in length. Any additional pages will not be evaluated. The Offeror(s) shall confine submissions to essential matters, sufficient to define the proposal and provide an adequate basis for evaluation. Offeror(s) are responsible for including sufficient details, in a concise manner, to permit a complete and accurate evaluation of each proposal. **No material may be incorporated in the proposal by reference, etc. to circumvent the page limitation. Font type shall be Times New Roman, size 12.** A proposal that fails to demonstrate compliance with the instructions may be removed from the competition.

The following documents are **not** included in the page limitation:

- a. **Cover Page**
- b. **Table of Contents**
- c. **Executive Summary:** Although this section will not be evaluated and is not necessary, if included, it should allow technical reviewers to quickly understand the critical elements of the proposal including the most salient features of the offerors' technical vision and approach, the key personnel and capabilities to accomplish the desired results. This section shall be limited to 3 pages. Any additional pages will not be reviewed.
- d. **Resume/Curriculum Vitae (CV):** Resumes/CVs submitted as part of the proposal, may not exceed 3 pages per person. Any additional pages will not be reviewed.
- e. **Past Performance References:** Offerors shall submit a list of no more than three (3) most recent Government and/or commercial contracts in performance at any point during the five (5) years prior to the proposal due date, which are relevant to the efforts required by this solicitation. A brief description of the effort, point of contact (POC) for each submitted effort, and contact information (name and phone number/email), contract value, and contract period of performance must also be provided.

Past performance will be considered relevant if the contract demonstrates relevant experiences that are similar in size, scope, and complexity to the effort described in the solicitation. The Government reserves the right to obtain past performance information from any available source, to include the U.S. Government's Contractor Performance Assessment Reporting System (CPARS) and may contact customers other than those identified by the Offeror when evaluating past performance.

- f. **Past Performance Questionnaires:** In addition to the Past Performance References, the Offeror shall provide a maximum of three (3) Past Performance Questionnaires, for contracts and/or subcontracts referenced above or for other relevant ones from within the last three (3) years. The Past Performance Questionnaire shall be forwarded by the Offeror to the contract POC for which the past performance reference is being provided. The attached Past Performance Questionnaire **MUST** be completed by the POC providing the reference.

Upon completion, the past performance POC should forward the completed questionnaire to USTDA via email to contractproposals@ustda.gov no later than proposal deadline for this solicitation.

The Government reserves the right to use other sources of past performance information, such as other Federal Government and commercial sources, to assess past performance.

- g. **Price Proposal:** Offeror(s) shall complete and submit the Price Proposal in Section B and B1. Offerors may propose up to six (6) labor categories and are encouraged to propose their most discounted rates.

E.1.7 Source Selection and Evaluation Criteria

The Government will award a contract to the responsible Offeror whose offer conforms to the solicitation and is determined, based on the evaluation factors, to represent the best value to the Government.

The non-price evaluation factors are listed in descending order of importance. **All evaluation factors, other than cost or price, when combined, are significantly more important than cost or price.** However, as technical merit of the proposals becomes more equal, price may become a determining factor.

E.1.7.1 Evaluation Factors

The following evaluation factors are listed in descending order of importance:

Evaluation Factor 1 – General Sector Expertise:

Offerors will be evaluated and ranked based on their comprehensive and relevant technical background, including proposed Technical Experts and staff, as well as proven professional experience in the rail transportation sector. This includes demonstrated knowledge of traffic demand models, port-rail integration, legal and institutional frameworks, environmental impact assessments, intermodal logistics, freight operations, and financing requirements of multilateral development banks such as the Asian Development Bank for the development of railroad projects.

Evaluation Factor 2 – Sector and Technical Experience

The Offeror's relevant technical managing, assessing and providing advisory services related to large-scale surface transportation projects, with demonstrated experience in the rail transportation sector, including port-rail integration, as it relates to this Performance Work Statement shall be evaluated to determine the likelihood that the offeror can successfully perform the contract requirements and the degree of the risk of non-performance. The Offeror's knowledge of U.S.-based technologies and industry standards and best practices, especially those relevant to the rail transportation sector, as highlighted in the PWS will be evaluated. Offerors must have at least 15 years of experience managing, assessing and providing advisory services related to large-scale surface transportation projects, with demonstrated experience in the rail transportation sector, including port-rail integration.

Evaluation Factor 3 – Professional Experience of the Offering Firm and Proposed Personnel

The Offeror shall describe its unique qualifications and technical experience to meet the requirements of this contract, including managing and working on contracts of similar size and scope as it relates to the PWS. The Offeror shall identify technical experts and other team members proposed to perform the work and demonstrate how they meet the contract requirements, particularly the minimum personnel requirements for all required disciplines and each team member's professional and/or education qualifications. Regional experience in railroad development projects or in evaluating railroad development projects in Southeast Asia is desirable but not required.

The offeror must have proven experience communicating, building and managing relationships, and creating alignment among diverse groups interested in or directly involved in the planning, execution, and decision-making of large-scale projects.

The offeror must have at least 7 years of experience reviewing milestone deliverables for large-scale projects and preparing reports that assess whether each deliverable meets the requirements of a pre-arranged agreement. This includes experience analyzing milestones such as stakeholder presentations and studies. Additionally, the offeror should demonstrate expertise in reviewing and validating expense reports and invoices, as well as ensuring adherence to payment schedules established by the agreement.

Evaluation Factor 4 – Past Performance

Please refer to Section E.1.6, paragraph e, "Past Performance Reference," and f, "Past Performance Questionnaires" for past performance content requirements. For the evaluation approach for this evaluation factor, please refer to E.1.7.2, "Evaluation Approach."

Evaluation Factor 5 – Price/Cost

Please refer to Section E.1.6, paragraph g, "Price Proposal," for the required proposal content. For the evaluation approach for this evaluation factor, please refer to E.1.7.3, "Evaluation Approach."

E.1.7.2 Evaluation Approach

All proposals shall be subject to evaluation by Government personnel. The Government reserves the right to award without discussions based upon the initial evaluation of proposals. The proposals will be evaluated strictly in accordance with its written content. Proposals which merely restate the requirement or state that the requirement will be met, without providing supporting rationale, are not sufficient. Offerors who fail to meet the minimum requirements of the solicitation will be rated Marginal or Unacceptable and will be ineligible for award. Proposals that do not conform to the requirements of this solicitation may be deemed ineligible for award.

a) Technical Evaluation Approach

Proposals will be evaluated to determine:

- The extent to which it demonstrates a clear understanding of requirements presented in the solicitation.
- The extent to which the proposed approach is workable and the end results achievable.
- The level of confidence provided the Government with respect to the Offeror's methods and approach in successfully meeting and/or exceeding the requirements in a timely manner.
- Whether the Offeror's methods and approach have adequately and completely considered, defined, and satisfied the requirements specified in the solicitation.

Technical evaluation factors will be evaluated using the following adjectival ratings:

Rating	Description
Outstanding	Proposal meets requirements and indicates an exceptional approach and understanding of the requirements. Strengths far outweigh any weaknesses. Risk of unsuccessful performance is very low.
Good	Proposal meets requirements and indicates a thorough approach and understanding of the requirements. Proposal contains strengths which outweigh any weaknesses. Risk of unsuccessful performance is low.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements. Strengths and weaknesses are offsetting or will have little or no impact on contract performance. Risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal does not clearly meet requirements and has not demonstrated an adequate approach and understanding of the requirements. The proposal has one or more weaknesses which are not offset by strengths. Risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements and contains one or more deficiencies. Proposal is unawardable.

b) Past Performance Evaluation Approach

The Past Performance evaluation will assess the relative risks associated with an Offeror's likelihood of success in fulfilling the solicitation's requirements as indicated by that Offeror's record of past performance. In this context, "Offeror" refers to the proposed prime Contractor. The Government will conduct a performance risk assessment based on the quality, relevancy, and recency of the Offeror's past performance, as it relates to the probability of successful accomplishment of the required effort.

The Government reserves the right to obtain past performance information from any available source and may contact customers other than those identified by the Offeror when evaluating past performance. Because of the wide variety of past performance history of individual Offerors, the Government is not required to ensure that an equal number of references be obtained for each Offeror. Since the Government may not necessarily interview all of the sources provided by the Offerors, it is incumbent upon the

Offerors to explain the relevance of the data provided. Offerors are reminded that the burden of proving low performance risk rests with the Offerors.

In the case of an Offeror without a record of relevant and recent past performance or for whom information on past performance is not available, the Offeror may not be evaluated favorably or unfavorably on past performance.

Past Performance factor shall be evaluated using the following adjectival ratings:

Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the Offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the Offeror's recent/relevant performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort.
Limited Confidence	Based on the Offeror's recent/relevant performance record, the Government has a low expectation that the Offeror will successfully perform the required effort.
No Confidence	Based on the Offeror's recent/relevant performance record, the Government has no expectation that the Offeror will be able to successfully perform the required effort.
Unknown Confidence (Neutral)	No recent/relevant performance record is available or the Offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned.

c) Price Evaluation Approach

The Government will evaluate offers using the Total Evaluated Price Methodology. The Government will evaluate offers by adding the total of all line-item costs/prices. The Total Evaluated Price will be that sum.

The Government will evaluate price to determine the following:

- **Completeness:** All information required by the solicitation has been submitted and is accurate.
- **Reasonableness:** The Government will conduct a price analysis to determine whether the proposed prices are fair and reasonable. This determination may be accomplished by one or more of the techniques set forth in FAR 15.404-1(b)(2).
- The Government may also conduct price realism for the purpose of assessing whether an Offeror's unrealistically low price reflects on its understanding of the task order requirements or the risk inherent in the Offeror's approach. Price quotes found to be unrealistically low (an indication of "buy – in") will be ineligible for award. The evaluated price will be used in the tradeoff analysis between price and technical factors to determine best value. Discounts are encouraged. No adjectival ratings will be used to evaluate Price

E.1.7.3 Best Value Award Determination

The Government will award a contract resulting from this RFP to the Offeror whose proposal conforms to the RFP requirements (including all stated terms, conditions, representations, certifications, and all other information required by this solicitation) and is determined, based on the evaluation factors, to represent the best value to the Government. The Government seeks to award to the Offeror who gives USTDA the greatest confidence that it will best meet or exceed the requirements affordably. This may result in an award to a higher rated, higher priced Offeror, where the decision is consistent with the evaluation factors and the Contracting Officer reasonably determines that the technical approach and/or superior past performance of the higher priced Offeror outweighs the cost difference.

In accordance with FAR 15.308, the Contracting Officer's award decision shall be based on a comparative assessment of proposals against all source selection criteria in the solicitation. FAR 15.308 further states that while the Contracting Officer may use reports and analyses prepared by others, the source selection decision shall represent the Contracting Officer's independent judgment.

The Government may award based on initial proposals received, without further discussions. Accordingly, each Contractor should submit an initial proposal to the Government using the most favorable terms from a cost/price and technical standpoint. Pursuant to FAR Part 15.306(c), if discussions are held, the Contracting Officer shall establish a competitive range of the most highly rated proposals. If the number of most highly rated proposals exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range.

Only one (1) award will result from this RFP.